

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: May 14, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Courant vs. FCA US, LLC, 25-01467420	<u>Demurrer to Complaint</u> Defendant FAC US, LLC ("FCA") demurs to the fourth and sixth causes of action of the Complaint filed by Plaintiff Lyann Courant. <i>Fourth Cause of Action for Breach of the Implied Warranty of Merchantability</i> FCA first contends Plaintiff's claim for breach of implied warranty of merchantability is time-barred. "California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly

	Act is governed by the same statute that governs the statute of limitations for warranties arising under the California Uniform Commercial Code: section 2725 of the California Uniform Commercial Code." (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305; see also Com. Code, § 2725, subd. (1); <i>Krieger v. Nick Alexander Imports, Inc.</i> (1991) 234 Cal.App.3d 205, 215.) Additionally, the Song-Beverly Act provides that the duration of the implied warranty of merchantability may extend to a period of not more than one year after purchase when accompanied by an express warranty of future performance spanning one year or longer. (Civ. Code § 1791.1, subd. (c).) This provision has been held to extend an implied warranty to future performance, such that "the implied warranty of merchantability may be breached by a latent defect undiscoverable at time of sale." (<i>Mexia, supra</i>, 174 Cal.App.4th at p. 1308.) While such breach must occur within the one-year time limit set forth in section 1791.1, subdivision (c), it need not be discovered or reported within such a period. (<i>Id.</i> at p. 1297 [noting that while the duration provision of section 1791.1(c) provides that an implied warranty of merchantability may not extend longer than one year, "[t]here is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period."].) "In the case of a latent defect ... the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (<i>Id.</i> at p. 1305.) FCA argues Plaintiff's implied warranty claim fails because Plaintiff did not allege any defect arose within the implied warranty's duration period. The FAC alleges Plaintiff entered into a warranty contract with FAC regarding a 2023 Alfa Romeo Stelvio ("Subject Vehicle") on or about November 4, 2023. (FAC ¶ 7.) The FAC further alleges the subject vehicle was sold with one or more latent defect(s). (<i>Id.</i> at ¶ 57.) There are no allegations in the FAC to indicate that defects developed in the Subject Vehicle past the one-year implied warranty period. Whether the defects in fact existed within one year of delivery or came into existence more than
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		one year after delivery is a dispute of fact which may not be resolved on demurrer. Additionally, the initial Complaint was filed on March 14, 2025 (ROA 2) , well within four years of November 2023, the earliest date a cause of action for breach of implied warranty could have accrued. FCA next contends Plaintiff's implied warranty cause of action fails because there was no privity between Plaintiff and FCA. FCA cites <i>Burr v. Sherwin Williams Co.</i> (1954) 42 Cal. 2d 682 for the proposition that privity of contract between the manufacturer and consumer is generally required in an action for breach of warranty and that "there is no privity between the original seller and a subsequent purchaser who is in no way a party to the original sale." (<i>Id.</i> at p. 695.) <i>Burr</i>, however, is unpersuasive because it addressed then-existing Civil Code section 1735, not the implied warranty of merchantability under Civil Code section 1792. Moreover, section 1792 expressly clarifies that every dealer and every manufacturer that sells a new automobile does so with an implied warranty. The demurrer is OVERRULED as to the fourth cause of action. <i>Sixth Cause of Action for Fraudulent Inducement Concealment</i> FCA asserts that the sixth cause of action for fraudulent concealment fails because the Complaint's fraud allegations lack the required specificity. Specific to a fraudulent concealment or omission claim, the plaintiff must allege: (1) the defendant concealed a material fact; (2) the defendant had a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed fact; and (5) as a result of the concealment of the fact, the plaintiff sustained damage. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 748.)
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		Plaintiff known about the defects at the time of sale, Plaintiff alleges that she would not have purchased the Subject Vehicle. (Id. at ¶¶ 69-70.) Plaintiff relied on FCA and its agent's omissions and concealment of the Engine Defect. (Id. at ¶ 55.) The Complaint alleges Plaintiff "was harmed and suffered actual damages in that the Subject Vehicle's engine is substantially certain to fail before its expected useful life has run." (Id.) Plaintiff alleges Kia "had superior and exclusive knowledge of the Engine Defect and knew or should have known that the Engine Defect was not known or reasonably discoverable by Plaintiff before Plaintiff purchased the Subject Vehicle." (Id. at ¶ 67.) With respect to fraudulent concealment claims, a plaintiff is not required to allege with the usual detail required in connection with fraud claims based on affirmative representations. In <i>Vega v. Jones, Day, Reavis & Pogue</i> (2004) 121 Cal.App.4th 282, the Court of Appeal found that the trial court had improperly sustained a demurrer to a concealment cause of action on the ground the cause of action on the ground plaintiff had failed to allege the cause of action "with the requisite degree of specificity," noting "The pertinent question in a concealment case is not who said what to whom" (Id. at 296.) Additionally, if the defendant is in a better position to know the facts concerning the alleged fraud, the requirement of specificity is relaxed. (See <i>Committee on Children's Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 217, <i>superseded by statute on other grounds in Branick v. Downey Savings & Loan Assn.</i> (2006) 39 Cal.4th 235.) "Less specificity should be required of fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy; even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party." (<i>Alfaro v. Community Housing Improvement & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384 [internal quotations
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		and citations omitted].) In <i>Alfaro</i>, the Court of Appeal found that the plaintiff home purchasers in a housing development were sufficiently specific in pleading fraud based on the defendant vendors' alleged nondisclosure of deed restrictions, even though plaintiffs did not allege that the nondisclosure occurred by a certain means or at a certain time or place, because the defendants possessed the records of their dealings with plaintiffs. (<i>Id.</i> at 1385.) Here, the specificity requirement is relaxed due to the nature of Plaintiff's claim as a concealment-based cause of action. The Complaint alleges fraudulent concealment with sufficient specificity. As in <i>Alfaro</i>, FCA possesses the information FCA asserts Plaintiff failed to allege. (<i>Alfaro, supra</i>, 171 Cal.App.4th at 1384 [details such as the names of the corporate employees with whom plaintiffs interacted are "properly the subject of discovery not demurrer"].) FCA next contends that Plaintiff fails to allege any breach of a tort duty that is independent of FCA's contractual duties under Plaintiff's purchase of the Subject Vehicle. In <i>Bigler-Engler, Inc.</i> (2017) 7 Cal.App.5th 276, the Court of Appeal held that: "A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as 'seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.'" (<i>Id.</i> at 311.) "[The California] Supreme Court has described the necessary relationship giving rise to a duty to disclose as a 'transaction' between the plaintiff and defendant: 'In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.'" (<i>Id.</i>) "Such a transaction must necessarily arise from direct dealings
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		between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (<i>Id.</i> at 312.) The Court of Appeal directly addressed this issue in <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844, and found that a car buyer need not allege a contract with the manufacturer in order to allege a duty to disclose: “Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiff alleges that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.” (<i>Dhital, supra</i>, 84 Cal.App.5th at 844.) Here, the Complaint adequately alleges FCA had knowledge of the Engine Defect that was unknown to Plaintiff. (Compl. at ¶¶ 22-25, 65-67.) The allegations sufficiently allege that Defendant actively concealed the Engine Defect. (<i>Id.</i>) Further, while Plaintiff does not allege he purchased the Subject Vehicle directly from FCA, Plaintiff alleges the parties entered into a warranty contract. (<i>Id.</i> at ¶ 7.) This is sufficient at the pleading stage. (See <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844.) Lastly, FCA contends that the economic loss rule bars Plaintiff’s fraudulent concealment cause of action. The economic loss rule provides that “ ‘[w]here a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only ‘economic’
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losses.' " (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 988, quoting *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 482.) In general, the economic loss rule bars "tort recovery for a breach of contract duty ... unless two conditions are satisfied." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20–21.) "A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (*Id.*)

FCA argues Plaintiff's fraudulent concealment claim should be barred by the economic loss doctrine because Plaintiff's injuries are purely economic and are within the reasonable contemplation of the parties' contractual relationship. The Dhital court, applying and expanding upon the holding in *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal. 4th 979, concluded that a claim for fraudulent inducement by concealment is not subject to demurrer simply on the ground that it is barred by the economic loss rule. (*See Dhital, supra*, 84 Cal. App. 5th at 840–841.) The ruling by the California Supreme Court in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 did not disturb the ruling in *Dhital*. (*Rattagan, supra*, 17 Cal.5th at p. 13.) Further, it has long been held that where a duty separate from the contract is breached, the economic loss rule does not apply, such as "where the contract was fraudulently induced." (*Erllich v. Menezes* (1999) 21 Cal.4th 543, 552.) As discussed above, Plaintiff has sufficiently alleged fraudulent inducement.

The demurrer is OVERRULED as to the sixth cause of action.

Motion to Strike Portions of Complaint

Defendant FAC US, LLC ("FCA") moves to strike the prayer for punitive damages in the Complaint filed by Plaintiff Lyann Courant.

		A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) Furthermore, a court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.) "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil Code §3294 subd. (a).) As used in this section, "fraud" means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code §3294 subd. (c)(3).) FCA moves to strike Plaintiff's prayer for punitive damages. Specifically, FCA contends that Plaintiff's Complaint fails to state a viable fraudulent concealment cause of action and, thus, Plaintiff fails to state any allegations capable of supporting a punitive damages award. Additionally, FCA argues that the Complaint's allegations are not sufficient to support corporate liability for punitive damages. As discussed in connection with FCA's demurrer, the Complaint sufficiently states a cause of action for fraudulent inducement and concealment. However, the Complaint fails to contain allegations sufficient to establish the advanced knowledge and conscious disregard, authorization, ratification, or act of oppression, fraud, or malice on the part of an officer, director, or managing agent of FCA. The Complaint's conclusory allegations that FCA knowingly and intentionally concealed material facts without any factual allegations
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		about the individuals involved and their authority are insufficient to plead a claim for punitive damages even if the complaint sufficiently alleges a fraud cause of action to survive demurrer. The motion to strike is granted. The prayer for punitive damages is stricken from the Complaint. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. The Case Management Conference is continued to August 6, 2026 at 1:30 p.m. <i>Defendant FAC US, LLC to give notice.</i>
101	Zavala vs. Becker, 24-01387754	Defendants Karl W. Becker, Karl Mark Becker, Gabrielle Becker-Irvin, and Craig-Becker Irvin move to compel plaintiff Regina M. Zavala to appear for deposition within 10 days and for an order imposing monetary sanctions in favor of Defendants in the amount of \$2,917.50. The Court notes that Plaintiff appeared for her deposition on April 13, 2026. Thus, the motion to the extent it seeks an order compelling Plaintiff to appear within 10 days is DENIED. As to sanctions, Plaintiff argues that no monetary sanctions should be imposed because she acted with substantial justification or other circumstances make the imposition of monetary sanctions unjust given that there was a breakdown in the relationship between her and her prior counsel through no fault of her own. However, on October 22, 2025, Plaintiff's prior counsel appeared for her deposition and informed Defendants that he had advised Plaintiff numerous times about the deposition and received no response. (Declaration of Joanne K. Leighton, Exhibit H.) Plaintiff's prior counsel stated again in a November 20, 2025 email to defense counsel that Plaintiff was advised of the deposition by letter, email, and text message. (Id., Exhibit J.) Because Plaintiff failed to appear for her deposition on October 22, 2025 despite being advised numerous times of the deposition

		date, the Court finds that the imposition of monetary sanctions is warranted. Thus, Defendants' request for monetary sanctions against Plaintiff is GRANTED in the amount of \$1,500.00. Sanctions to be paid within 30 days. <i>Defendants to give notice.</i>
102	Douglas vs. Gordon Lane Healthcare, LLC, 23-01330147	Defendant, Sun Mar Management Services ("Sun Mar"), moves for an order staying and quashing the notice of deposition of Mike Oxford served by Plaintiffs Ellen Douglas, individual and as successor-in-interest to Bruce Douglas, Megan Douglas, and Cameron Douglas (collectively, "Plaintiffs"), as well as moves for a protective order as to the deposition of Mike Oxford. Defendant Sun Mar, contends that Mr. Oxford is the Chief Operating Officer of Defendant Sun Mar and is tantamount to an "apex" employee who has no personal, unique, or superior knowledge of any of the facts surrounding this lawsuit. Sun Mar asserts that the notice of deposition for Mr. Oxford should be stayed and quashed as Plaintiffs have prematurely noticed his deposition, and that the Court should issue a protective prevent the deposition of Mr. Oxford. Sun Mar asserts that good cause exists for a protective order as Plaintiffs improperly seek to take the deposition of Mr. Oxford without first seeking discovery regarding the knowledge and information possessed by Mr. Oxford through less intrusive discovery methods, and without satisfying the principles set forth in <i>Liberty Mutual Insurance Company v. Superior Court</i> (1992) 10 Cal.App.4th 1282, and that the depositions of all relevant caregivers and lower level employees of Defendant(s) must take place before Plaintiffs can be allowed to leap to the apex of the Defendant company to reach Mr. Oxford. Sun Mar further asserts that Plaintiffs have not and cannot make a showing that Mr. Oxford has any personal, unique, or superior knowledge of any of the facts surrounding this lawsuit. Plaintiffs contend that the gravamen of Plaintiffs' neglect claims concern operational decisions that were made by managing agents of Defendant Sun Mar during Bruce Douglas' admission to Defendants' facility;

that the assertion that Mr. Oxford is an "apex" employee is conclusory; that the circumstances at issue differ from the circumstances in Liberty Mutual; and that on April 8, 2026, Plaintiffs deposed John Bowen in his individual capacity and as person most knowledgeable for Gordon Lane Healthcare Center, who testified that Mr. Oxford was the Chief Operating Officer at Sun Mar at the time of Bruce Douglas' admission to Defendants' facility, and that there was a management agreement in effect between Sun Mar and Gordon Lane Healthcare Center at the time, as well as that Plaintiffs have served interrogatories and written discovery regarding matters pertaining to ownership and control of Defendants' facility which Defendants have evaded answering in a straightforward manner. Plaintiffs assert that Defendant has not met its initial burden to establish good cause for a protective order.

Meet and Confer

Code of Civil Procedure section 2025.410(c) provides that a motion for an order staying the taking of the deposition and quashing the deposition notice shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. Similarly, a motion for protective order under Code of Civil Procedure section 2025.420 "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. § 2025.420(a).) Code of Civil Procedure section 2016.040 provides that "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

Sun Mar's counsel provides that on March 19, 2026, Plaintiffs' counsel notified defense counsel by email that Plaintiffs would be serving a Notice of Deposition for Mike Oxford; that defense counsel responded via email stating the reasons why Mr. Oxford's deposition was inappropriate, their intention to file a motion to quash, and an invitation to further meet and confer; and that Plaintiffs' counsel responded by email inviting further meet and confer following the filing of the instant motion and served the Notice of

		Deposition of Mike Oxford on March 19, 2026. (Declaration of Lydsay E. Dublin, ¶¶ 8-10, Exs. B-D.) Neither the moving nor the opposing papers show any additional or further meet and confer despite both parties' invitation to do so. The email correspondence does not reflect adequate, reasonable, and good faith attempts to meet and confer to informally resolve the issue presented by the motion as to the deposition of Mr. Oxford. Nevertheless, in this instance, the Court will turn to the merits of the motion. The Court warns the parties that any failure to adequately meet and confer with regards discovery in the future will result in either denial of the motion or a continuance for the parties to comply with their statutory obligations. <i>Merits</i> Here, Sun Mar's arguments to quash the deposition notice and to issue an order prohibiting the deposition of Mr. Oxford at this time is premised on the assertion that Mr. Oxford is an "apex" employee. To support that Mr. Oxford is an "apex" employee, Sun Mar's counsel states that Mr. Oxford is the Chief Operating Officer of Sun Mar. (Declaration of Lyndsay E. Dublon, ¶ 2.) Sun Mar argues that Plaintiffs have not complied with the principles set forth in <i>Liberty Mutual</i> in seeking the deposition of Mr. Oxford. The showing in <i>Liberty Mutual</i> to establish that the individual was an "apex" employee is not present here. In <i>Liberty Mutual</i>, the Court of Appeal explained that "[t]he head of a large national corporation will generally not have knowledge of a specific incident or case handled several levels down the corporate pyramid," and that "an insurance company's chief executive will seldom, if at all, be involved in the day-to-day processing of claims." (<i>Liberty Mutual, supra</i>, 10 Cal.App.4th at p. 1287.) Additionally, in <i>Liberty Mutual</i>, the corporate executive at issue declared a lack of knowledge or involvement, and "his administrative assistant establish[ed] that individual case material or correspondence is habitually rerouted away from Countryman [the president and chief
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		executive officer of Liberty Mutual Insurance Company] and to a lower level official.” (<i>Ibid.</i>) More specifically, the plaintiff named as defendants, Liberty Mutual Insurance Company and its president and chief executive officer, Gary Countryman. (<i>Id.</i> at p. 1285.) The deposition of Countryman was noticed and Countryman moved for a protective order to prohibit his deposition on the ground that the plaintiff had no legitimate need to depose him and was doing so only for the purposes of annoyance and harassment. (<i>Ibid.</i>) To support the motion, Countryman submitted a declaration stating that he was not involved in the handling, supervision or management of any claims for Liberty Mutual, and that he had no knowledge of the plaintiff’s case or any facts alleged in the plaintiff’s complaint. (<i>ibid.</i>) In addition, Countryman’s administrative assistant submitted a declaration stating that she was responsible for screening all of Countryman’s correspondence, and that she had no recollection of plaintiff’s matter or any legal papers or correspondence relating thereto, and that any such materials relating to plaintiff’s claim and addressed to Countryman would have been shunted to a lower level employee. (<i>Id.</i> at pp. 1285-1286.) In contrast, the instant motion to quash and protective order is supported only by a declaration of counsel who states in conclusory fashion that Mr. Oxford is the Chief Operating Officer of Sun Mar. Mr. Oxford’s title, without more facts regarding the levels of corporate management, Mr. Oxford’s lack of knowledge or involvement of the instant lawsuit or facts upon which this lawsuit is based, does not sufficiently establish that Mr. Oxford is an “official at the highest level of corporate management” for Sun Mar to trigger the principles set forth in Liberty Mutual for the deposition of an “apex” individual. There is insufficient information presented to the Court to establish that Mr. Oxford is an “apex” individual of Sun Mar. Consequently, Sun Mar fails to show that the deposition notice of Mr. Oxford should be quashed and fails to show good cause for a protective order prohibiting Mr. Oxford’s deposition.
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		Based on the foregoing, the Court DENIES Sun Mar's motion to quash the deposition of Mr. Oxford, and denies the requested protective order. <i>Plaintiffs to give notice.</i>
103	Berger vs. Mission Viejo Animal Services, 25-01502673	<i>Off-calendar.</i>
104	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Requests for Admission, Set One, served on Defendant on October 11, 2025. Initially, this Motion was filed January 8, 2026 by Plaintiffs David Hoshour and Wensun Chen, who are in pro per. (ROA 65.) Notably, in support of the Motion is a declaration by "Mark J. Kizer" who is "assisting Plaintiffs DAVID GUY HOSHOUR and WENSUN CHEN in this matter." (Declaration of Kizer para.1.) While Mr. Kizer indicates he has "personal knowledge of the facts set forth herein and could competently testify thereto", he fails to indicate how, or whether he is an attorney. Where responses have been served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. [CCP § 2033.290.] Importantly, no further response can be ordered to an RFA that has been unqualifiedly denied, even if the facts involved are unquestionably true. "[A] court [cannot] force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions" by denying them. [<i>Holguin v. Sup.Ct. (Hoage)</i> (1972) 22 Cal.App.3d 812, 820.] Here, on October 11, 2025 Plaintiffs served RFAs, Set 1. (Decl. Kizer¶2.) Defendant did not serve responses until December 16, 2025

		(Defendant's Opp). The Separate Statement, filed concurrently with the motion, establishes that for many RFAs Defendant responded "unknown". Defendant also denied several RFAs. (See Separate Statement, ROA 56) On December 17, 2025, Plaintiff mailed a meet and confer letter as required by CCP § 2033.290(b)(1). In response to this Motion, Defendant Montgomery merely states that she served responses on December 16, 2025. Therefore, Motion is GRANTED as to RFAs 20, 22, 32, 40, 42, and 43 wherein Defendant evasively responded "unknown". To the extent this motion is directed to responses where Defendant equivocally denied or admitted an RFA, the motion is DENIED pursuant to the authority set forth above. Plaintiff's request for sanctions is DENIED as not having been properly noticed. ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Code Civ. Proc., § 2023.040.] Furthermore, in pro per parties cannot recover discovery sanctions. [See <i>Argaman v. Ratan</i> (1999) 73 Cal.App.4th 1173, 1179; <i>Kravitz v. Sup.Ct. (Milner)</i> (2001) 91 Cal.App.4th 1015, 1021.] <i>Plaintiff to give notice.</i>
105	Godoy vs. Godoy, 24-01413474	<i>Off-Calendar.</i>
106	McKesson Medical Surgical, Inc. vs. Gordian Medical, Inc., 25-01500196	Specially Appearing Defendant Gordian Medical, Inc. ("Defendant") moves to quash service of summons and dismiss the action against it for lack of personal jurisdiction. "Due process permits the exercise of personal jurisdiction over a nonresident defendant in the following four situations: (1) where the defendant is domiciled in the forum state when the lawsuit is commenced; (2) where the defendant is personally served with process while he or she is physically present

	in the forum state; (3) where the defendant consents to jurisdiction; and (4) where the defendant has sufficient 'minimum contacts' with the forum state, such that the exercise of jurisdiction would not offend 'traditional notions of fair play and substantial justice.' " (<i>In re Marriage of Fitzgerald & King</i> (1995) 39 Cal.App.4th 1419, 1425-1426 [internal citations omitted].) "When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction." (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 449.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate." (<i>Strasner v. Touchstone Wireless Repair and Logistics, LP</i> (2016) 5 Cal.App.5th 215, 222.) The Plaintiff must establish jurisdiction "by a preponderance of the evidence." (<i>Shisler v. Sanfer Sports Cars, Inc.</i> (2006) 146 Cal.App.4th 1254, 1259.) "Once facts showing minimum contacts with the forum states are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 449.) "When there is conflicting evidence, the trial court's factual determinations are not disturbed on appeal if supported by substantial evidence." (<i>Ibid.</i>) Here, the only evidence Plaintiff provides to support its claim that this Court has personal jurisdiction over Defendant is the declaration of Plaintiff's counsel. Counsel declares that "Defendant was personally service [sic] on September 19, 2025, via the registered agent for service of process according to the Secretary of State website. Attached hereto as Exhibit 'A' is a true and correct copy of the Secretary of State website which shows the agent for service of process registered by Defendant. Attached hereto as Exhibit 'B' is a true and correct copy of the filed Proof of Service." (Hettena Decl. ¶3.) However, counsel's declaration does not contain the
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		requisite certification that the statements made therein are under penalty of perjury. (See CCP §2015.5.) Thus, the statements cannot be considered evidence. Further, while Plaintiff discusses numerous other documents in its opposition, none of those documents have been authenticated. The Court therefore cannot consider them in connection with this motion. Accordingly, Plaintiff has failed to meet its burden of demonstrating jurisdiction. Even if the Court were to consider counsel's declaration, a foreign corporation's designation of an agent for service of process in California is not a submission to personal jurisdiction here. I.e., although service of summons may be made on the designated agent, the action cannot be maintained against a foreign corporation absent "minimum contacts" with California. (<i>Gray Line Tours of Southern Nevada v. Reynolds Electrical & Engineering Co., Inc.</i> (1987) 193 Cal.App.3d 190, 193-194; <i>Thomson v. Anderson</i> (2003) 113 Cal.App.4th 258, 270.) In contrast, Defendant has submitted evidence that it has virtually no contacts with California. (See Danner Dec. at ¶¶ 1-3.) Defendant is a Nevada corporation with its principal place of business in the State of Kentucky. (Danner Decl. ¶ 3.) Defendant does not maintain any corporate offices or distribution centers in the State of California, as Defendant vacated its California office on or about September 30, 2024. (<i>Ibid.</i>) Furthermore, Defendant maintains only one warehouse and distribution center in Frankfort, Kentucky. (<i>Id.</i>) Accordingly, the motion is GRANTED pursuant to Code of Civil Procedure section 418.10(a)(1). The Case Management Conference is continued to July 30, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
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107	Iorio vs. Certified HOA Management, Inc., 24-01421374	<i>Off-Calendar.</i>
108	Abitong vs. FCA US, LLC, 25-01458981	<i>Off-calendar. The Case Management Conference will proceed as scheduled.</i>
109	The People of the State of California vs. Super 8 Gas Corporation, 22-01255181	<u>Application for OSC re: Contempt</u> Plaintiff The People of the State of California (the "People") apply for the Court to set an Order to Show Cause requiring defendants Super 8 Gas Corporation and Saleh Omar to show cause as to why they should not be held in contempt of this Court's Order issued on August 21, 2025. "As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order. [Citations.]" (<i>In re Ivey</i> (2000) 85 Cal.App.4th 793, 798; <i>accord, Wanke, Indus., Commercial, Residential, Inc. v. Superior Court</i> (2012) 209 Cal.App.4th 1151, 1168 (<i>Wanke</i>).) The subject order assessed \$50,000 in penalties against Defendants Super 8 Gas and Saleh Omar ("Defendants"). Defendants were ordered to pay \$50,000 as follows: \$25,000 to Orange County District Attorney's Office and \$25,000 to Riverside County District Attorney's Office. Payment was to be made within 30 days of service of the order. (ROA 45.) The People filed their Application for OSC re: Contempt on 10/31/25. (ROA 49.) At the time, the People indicated that on 9/26/25, Defendants paid \$10,000 (\$5,000 to Riverside County and \$5,000 to Orange County). (ROA 49, Park Decl. ¶12.) On 1/28/26, the People filed a supplemental declaration in which it was indicated that additional \$5,000 payments were made to each of the counties in November 2025 and in January 2026 (ROA 52 ¶¶9-12.) On 4/6/26, in connection with their motion to seal, the People filed the declaration of attorney Susan Park, who indicates that "[a]s of March 11, 2026, the defendants have fully paid \$50,000

		to the Orange County District Attorney's Office and Riverside District Attorney's Office." (ROA 82, Park Decl. ¶ 16.) The People have also submitted a copy of a 9/26/25 email from attorneys for Defendants in which it was stated that Defendants were not in a financial position to pay the full \$50,000 at that time, and instead proposed a payment plan. (ROA 91, Exh. 1-3.) The People have submitted no evidence that Defendants were able to comply with the Court's order by paying the \$50,000 as a lump sum, within the timeline ordered by the Court. To the contrary, it appears that Defendants made a good faith attempt to comply with the Order by submitting payments over time. Thus, it does not appear that any failure to comply was willful. Further, as Defendants have now complied with the Court's order by paying the full \$50,000, there is nothing to be accomplished by way of contempt proceedings. In addition to the above, as the Court previously expressed in its order continuing the initial hearing on this application, the Court has concerns over when Defendants received notice of its order. For all of these reasons, the motion is DENIED. <u>Motion to Seal</u> The People's unopposed Motion to Seal is GRANTED in part and DENIED in part pursuant to California Rules of Court Rules 2.550 and 2.551. The People's motion is DENIED as to Exhibits 1, 1-1, 1-2 and 1-3. (ROAs 85, 87, 89, 91.) These documents are communications between counsel for the parties, which include some settlement discussions. The People cite to Evidence Code §1152 as support for the proposition that these materials should be sealed. However, section 1152 merely states that settlement discussions are inadmissible to prove liability. This does not mean that there is an overriding interest in keeping settlement
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		communications between opposing counsel out of the public record. The motion is GRANTED as to Exhibits 2 and 3. These documents contain private financial information of Defendants, in the form of financial account numbers. As to these documents, the Court finds the existence of an overriding interest which overcomes the right of public access and supports sealing. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed. Accordingly, the unredacted versions of Exhibits 2 and 3 (ROAs 93 and 95) are ordered sealed. <i>Plaintiff to give notice.</i>
110	Ally Bank vs. Chavez, 25-01515267	<i>Off-calendar.</i>
111	Hernandez vs. ATI Restoration, 25-01507578	Defendants ATI Restoration, LLC and Gary Moore's motion to compel arbitration and stay action is GRANTED. Defendants request for judicial notice is GRANTED. The Court takes judicial notice of: (1) ATI's Limited Liability Company Articles of Organization – Conversion, filed with the California Secretary of State on July 28, 2020, reflecting the conversion of American Technologies Inc. into ATI Restoration, LLC (Exh. 1); and ATI's Certificate of Conversion, filed with the California Secretary of State on July 29, 2020, reflecting ATI's conversion into a Delaware limited liability company (Exh. 2). (Evid. Code, § 452, subd. (c); Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, fn. 3 [taking judicial notice of statements of information filed with the California Secretary of State].) Defendants' evidentiary objections Nos. 1 through 4 to the Declaration of Victor Hernandez are OVERRULED. Defendants ATI Restoration, LLC ("ATI") and Gary Moore (collectively "Defendants") move for order compelling Plaintiff to submit his

		claims to arbitration, and staying the action pending resolution of the arbitration. A. <i>Relevant Facts</i> The Employment-at-Will and Arbitration Agreement ("Arbitration Agreement") provides, in relevant part, as follows: "2. I [Plaintiff] and the Company [ATI] agree to utilize binding individual arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to my employment, including but not limited to the termination of my employment and my compensation. I and the Company each specifically waive and relinquish our respective rights to bring a claim against the other in a court of law. Both I and the Company agree that any claim, dispute, and/or controversy that I may have against the Company (or its owners, directors, officers, managers, employees, or agents), or the Company may have against me, shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act ("FAA"), in conformity with the procedures of the California Arbitration Act (Cal. Code Civ. Proc. sec 1280 et seq., including section 1283.05 and all of the Act's other mandatory and permissive rights to discovery). The FAA applies to this Agreement because the Company's business involves interstate commerce. Included within the scope of this Agreement are all disputes, whether based on tort, contract, statute (including, but not limited to, any claims of discrimination, harassment and/or retaliation, whether they be based on the California Fair Employment and Housing Act, Title VII of the Civil Rights Act of 1964, as amended, or any other state or federal law or regulation), equitable law, or otherwise. The only exception to the requirement of binding arbitration shall be for claims arising under the National Labor Relations Act which are brought before the National Labor Relations Board, claims for medical and disability benefits under the California Workers' Compensation Act, Employment Development Department claims, or other claims that are not subject to arbitration under current law. I and the Company acknowledge that by
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		signing or refusing to sign this Agreement, I make no representation or demonstration of support or rejection of concerted activity. However, nothing herein shall prevent me from filing and pursuing proceedings before the California Department of Fair Employment and Housing, or the United States Equal Employment Opportunity Commission (although if I choose to pursue a claim following the exhaustion of such administrative remedies, that claim would be subject to the provisions of this Agreement). By this binding arbitration provision, I acknowledge and agree that both the Company and I give up our respective rights to trial by jury of any claim I or the Company may have against the other. "3. All claims brought under this binding arbitration Agreement shall be brought in the individual capacity of myself or the Company. This binding arbitration Agreement shall not be construed to allow or permit the consolidation or joinder of other claims or controversies involving any other employees or parties, or permit such claims or controversies to proceed as a class action, collective action or any similar representative action. No arbitrator shall have the authority under this agreement to order any such class, collective or representative action. By signing this agreement, I am agreeing to waive any substantive or procedural rights that I may have to bring an action on a class, collective, representative, or other similar basis. However, due to the nature of this waiver, the Company has provided me with the ability to choose to retain these rights by affirmatively opting out of this paragraph. I may elect to opt out of this paragraph and retain any right I may have to bring an action on a class, collective, private attorney general, representative or other similar basis, by contacting the General Counsel, in writing via certified mail at 210 W. Baywood Ave, Orange, California 92865, within thirty days of executing this Agreement. "4. In addition to any other requirements imposed by law, the arbitrator selected to hear claims under this Agreement shall be a retired California Superior Court Judge, or an otherwise qualified individual to whom the
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parties mutually agree, and shall be subject to disqualification on the same grounds as would apply to a judge of such court. All rules of pleading (including the right of demurrer), all rules of evidence, all rights to resolution of the dispute by means of motions for summary judgment, judgment on the pleadings, and judgment under Code of Civil Procedure Section 631.8 shall apply and be observed. The arbitrator shall have the immunity of a judicial officer from civil liability when acting in the capacity of an arbitrator, which immunity supplements any other existing immunity. Likewise, all communications during or in connection with the arbitration proceedings are privileged in accordance with Cal. Civil Code Section 47(b). As reasonably required to allow full use and benefit of this agreement's modifications to the Act's procedures, the arbitrator shall extend the times set by the Act for the giving of notices and setting of hearings. Awards shall include the arbitrator's written reasoned opinion. Resolution of all disputes shall be based solely upon the law governing the claims and defenses pleaded, and the arbitrator may not invoke any basis (including but not limited to, notions of "just cause") other than such controlling law."

(Declaration of Avisay Chinnis ("Chinnis Decl."), ¶ 5, Ex. 1 [Arbitration Agreement].)

The Arbitration Agreement broadly covers all employment-related claims, including disputes based on tort, contract, or statute, such as claims for discrimination, harassment, and/or retaliation, and therefore encompasses the claims asserted in this action. (Id., Arbitration Agreement, ¶ 2.)

The Arbitration Agreement further provides that it is governed by the Federal Arbitration Act ("FAA"); accordingly, the FAA applies. (Id., Arbitration Agreement, ¶ 2.)

Plaintiff filed this action in court and declined Defendants' request to submit his claims to arbitration. (Declaration of A.J. Sparagna ("Sparagna Decl."), ¶¶ 2-4, Exs. A-B.)

B. Motion to Compel Arbitration

	The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a "liberal federal policy favoring arbitration," and the "fundamental principle that arbitration is a matter of contract." (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339 ("<i>Concepcion</i>").) The FAA permits agreements to arbitrate to be invalidated by "generally applicable contract defenses, such as fraud, duress, or unconscionability." (<i>Concepcion, supra</i>, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply "ordinary state-law principles that govern the formation of contracts." (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) "[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) On a motion to compel arbitration under the FAA, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration."].) <i>C. Agreement to Arbitrate</i> "The trial court determines whether an agreement to arbitrate exists 'using a three-step burden-shifting process.' [Citation.] First, the party petitioning to compel arbitration must state 'the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must
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		be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the petitioner meets their initial burden, the burden of production shifts to the party opposing the petition to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.’ ” (<i>Id.</i>, at p. 992.) Defendants satisfied their initial burden of establishing the existence of an arbitration agreement encompassing Plaintiff’s employment-related claims by submitting a copy of the Arbitration Agreement. (Chinnis Decl., ¶ 5, Ex. 1.) The burden therefore shifted to Plaintiff to produce admissible evidence creating a factual dispute regarding the agreement’s existence or authenticity. Plaintiff argues the Arbitration Agreement is unenforceable because Defendants failed to establish the existence of a valid agreement, failed to properly authenticate Plaintiff’s electronic signature, and relied on declarations lacking sufficient foundation regarding the electronic onboarding and signature process. Plaintiff attests that he does not recall signing an arbitration agreement. (Declaration of Victor Hector Hernandez (“Hernandez Decl.”), ¶ 2.) In response, Defendants submit evidence demonstrating Plaintiff electronically reviewed and signed the agreement through ATI’s secure, password-protected Sage HRMS platform using unique login credentials created by Plaintiff. (Supplemental
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		Declaration of Avisay Chinnis, ¶¶ 3, 6-7.) Specifically, employees were required to create individualized Sage accounts using their social security number, date of birth, zip code, security questions, and self-selected passwords, which were accessible only to the employee. (Ibid.) The Sage audit history reflects that Plaintiff electronically accessed and signed the Arbitration Agreement on March 8, 2016 by entering his name, the date, and the last four digits of his social security number through his unique Sage login credentials. (Id., ¶ 11.) On this record, Plaintiff's inability to recall signing the Arbitration Agreement, without more, is insufficient to create a genuine factual dispute regarding the existence or authenticity of the agreement. (<i>West v. Solar Mosaic LLC, supra</i>, 105 Cal.App.5th at p. 992.) Plaintiff also contends ATI lacks standing to enforce the agreement because the agreement identifies "American Technologies, Inc." rather than ATI as the contracting entity. However, Defendants presented evidence establishing that American Technologies, Inc. converted into ATI without any change in ownership or control in 2020, thereby permitting Defendants to enforce the agreement as the successor entity. (Supplemental Declaration of A.J. Sparagna, ¶¶ 7-9, Exhs. A-B; Request for Judicial Notice, Exs. 1-2.) Both California and federal courts recognize that successor entities may enforce arbitration agreements entered into by predecessor entities where a sufficient relationship exists between the entities following a corporate conversion, merger, or restructuring. (See <i>Marenco v. DirecTV LLC</i> (2015) 233 Cal.App.4th 1409, 1412; <i>Contec Corp. v. Remote Solution Co., Ltd.</i> (2d Cir. 2005) 398 F.3d 205, 209-211.) <i>D. Unconscionability</i> Plaintiff also contends that the Arbitration Agreement is unenforceable because it is unconscionable. The doctrine of unconscionability refers to "an absence of meaningful choice on the part of
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	one of the parties together with contract terms which are unreasonably favorable to the other party." (<i>Sonic-Calabasas A, Inc. v. Moreno</i> (2013) 57 Cal.4th 1109, 1133.) It consists of both procedural and substantive components – "the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (<i>Ibid.</i>) In order to be unenforceable due to unconscionability, "[procedural and substantive unconscionability] must both be present." (<i>Armendariz v. Found Health Psychcare Servs., Inc., supra</i>, 24 Cal.4th at p. 114, quoting <i>Stirlen v. Supercuts, Inc.</i> (1997) 51 Cal.App.4th 1519, 1533; see <i>Wherry v. Award, Inc.</i> (2011) 192 Cal.App.4th 1242, 1246 ["To be voided on [unconscionability] ground[s], the agreement must be both procedurally and substantively unconscionable."]) However, "they need not be present in the same degree." (<i>Armendariz v. Found Health Psychcare Servs., Inc., supra</i>, 24 Cal.4th 83, 114; <i>Parada v. Superior Court</i> (2009) 176 Cal.App.4th 1554, 1570.) "Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively unconscionable the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (<i>Armendariz v. Found Health Psychcare Servs., Inc., supra</i>, 24 Cal.4th 83 at p. 114.) "The party resisting arbitration bears the burden of proving unconscionability." (<i>Pinnacle Museum Tower Ass'n v. Pinnacle Market Dev. (US), LLC</i> (2012) 55 Cal.4th 223, 247.) <i>Procedural Unconscionability</i> Procedural unconscionability concerns the manner in which the contract was
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		negotiated and the parties' circumstances at that time. It focuses on the factors of surprise and oppression. (<i>Kinney v. United Healthcare Servs.</i> (1999) 70 Cal.App.4th 1322, 1329.) These factors "include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney." (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 126-127.) Thus, the Supreme Court has instructed courts to first determine whether an arbitration agreement is adhesive. (See <i>Armendariz v. Found. Health Psychcare Servs., Inc.</i>, <i>supra</i>, 24 Cal. 4th 83, 114-15.) "Oppression generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it." (<i>Carmona v. Lincoln Millennium Car Wash, Inc.</i> (2014) 226 Cal.App.4th 74, 84, quotations and citations omitted.) Plaintiff contends the Arbitration Agreement is procedurally unconscionable because it was presented as a non-negotiable condition of employment during onboarding, creating oppression and unequal bargaining power. However, Defendants presented evidence that execution of the Arbitration Agreement was voluntary and that employees are not required to sign the Arbitration Agreement. (Chinnis Decl., ¶¶ 3-4, Ex. 1 [Arbitration Agreement].) Further, Plaintiff submits no evidence that he was rushed, pressured, denied an opportunity to review the agreement, or prevented from asking questions before signing. Rather, Plaintiff merely attests that he does not recall signing the agreement. (See Hernandez Decl., ¶ 2.) Accordingly, while some degree of procedural unconscionability may exist because the agreement was presented in the employment context, any such unconscionability minimal.
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Plaintiff also contends the agreement is procedurally unconscionable because Plaintiff's first language is Spanish and Defendants failed to provide a Spanish-language version of the agreement or explain its terms in a language with which Plaintiff was most comfortable. (Hernandez Decl., ¶ 3.) However, Plaintiff merely attests that English is not his first language, without presenting evidence regarding the extent of his English-language proficiency or demonstrating that he was unable to understand the agreement. (Ibid.) While the failure to provide a translated agreement may contribute to procedural unconscionability where an employee cannot read or understand English, courts have declined to assign significant weight to this factor absent evidence regarding the employee's actual level of English comprehension. (See *Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 85; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 128.) Thus, this factor demonstrates, at most, a minimal degree of procedural unconscionability.

Plaintiff further contends the agreement failed to attach or identify the governing arbitration rules, thereby preventing Plaintiff from understanding the nature and scope of the arbitration procedures. While the failure to attach incorporated arbitration rules may contribute to procedural unconscionability where material terms are "artfully hidden" from the employee, courts have declined to assign significant weight to this factor absent a showing that the omitted rules contain unfair or substantively unconscionable provisions. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246; *Nelson v. Dual Diagnosis Treatment Ctr., Inc.* (2022) 77 Cal.App.5th 643, 661-662.) Here, Plaintiff does not identify any specific arbitration rule that improperly limits Plaintiff's claims, remedies, or statutory rights. Moreover, the Arbitration Agreement expressly incorporates the procedures of the California Arbitration Act, including statutory discovery rights, and does not contain conflicting or misleading procedural terms. Accordingly, this factor establishes, at most, a minimal degree of procedural unconscionability.

Overall, the record does not demonstrate a high degree of oppression or surprise. The Arbitration Agreement was presented as a standalone document, clearly identified its arbitration provisions, and expressly advised Plaintiff that both parties were waiving their right to a jury trial. (Chinnis Decl., Ex. 1.) Further, Defendants presented evidence that execution of the agreement was voluntary and employees were permitted to review the agreement at their own pace and contact human resources with questions. (Chinnis Decl., ¶¶ 3-4; Supp. Chinnis Decl., ¶ 10.) There is no evidence Plaintiff was rushed, pressured, misled, or prevented from reviewing the agreement before signing. Thus, while some degree of procedural unconscionability exists, any such unconscionability is minimal.

Substantive Unconscionability

In order to be invalid, the arbitration agreement must also be substantively unconscionable. "Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh." (*Carmona v. Lincoln Millennium Car Wash, Inc., supra*, 226 Cal.App.4th at p. 85, quotations and citations omitted.) "A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be so one-sided as to 'shock the conscience.'" (*Ibid.*)

The "paramount consideration" is the mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.) "Substantive unconscionability focuses on the one-sidedness or overly harsh effect of the contract term or clause." (*Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1406-1407.) An arbitration agreement "lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or series of transactions or occurrences." (*Armendariz v. Found Health Psychcare Servs., Inc., supra*, 24 Cal.4th at p. 120.)

		Plaintiff contends the Arbitration Agreement is substantively unconscionable because the requirement that disputes be heard by a retired California Superior Court judge allegedly imposes excessive arbitration costs. However, the Arbitration Agreement does not limit the arbitrator to a retired California Superior Court judge, but also permits the parties to mutually select another qualified arbitrator. (Chinnis Decl., Ex. 1, [Arbitration Agreement, ¶ 4].) Further, Plaintiff identifies no provision requiring Plaintiff to bear arbitration costs or fees beyond those that would otherwise be incurred in court. Nor does Plaintiff identify any provision rendering the agreement one-sided or lacking mutuality. To the contrary, the Arbitration Agreement mutually requires both Plaintiff and Defendants to arbitrate all employment-related disputes. (Id., Arbitration Agreement, ¶ 2.) Plaintiff has failed to demonstrate substantive unconscionability. Because Plaintiff has failed to demonstrate substantive unconscionability, the minimal procedural unconscionability present is insufficient to render the Arbitration Agreement unenforceable. Accordingly, the motion is GRANTED. The Court STAYS the action pending arbitration. (9 U.S.C.A. § 3; Code Civ. Proc. § 1281.4.) Arbitration Status Review Hearing set for December 17, 2026 at 1:30 p.m. The Case Management Conference is taken off-calendar. <i>Defendants to give notice.</i>
112	BKC Entertainment LLC vs. K1 Speed Franchising, Inc., 23-01317103	Plaintiff BKC Entertainment LLC ("BKC" or "Plaintiff") moves for summary adjudication of its first, second, and third causes of action against defendants K1 Speed Franchising, Inc. ("K1"), David Danglard, and Uli Perez (together, "Defendants"). Plaintiff argues it is entitled to summary adjudication of its three causes of action under the California Franchise Investment Law (CFIL) because there is no material dispute that K1 failed to register its franchise

		offerings with the California Department of Financial Protection and Innovation (DFPI) prior to offering and selling franchises to Plaintiff, failed to disclose the identity of affiliated companies in its Franchise Disclosure Document (FDD) as required under Corporations Code section 31201, and provided Plaintiff with a 5-year pro forma statement that was not included in Item 19 of its FDD in violation of Corporations Code section 31201. Defendants argue that the instant motion is procedurally improper because the arguments and facts raised by Plaintiff would not dispose of entire causes of action, given that no evidence regarding Plaintiff's damages has been presented. "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c(f)(1).) "A plaintiff can obtain summary adjudication of a cause of action only by proving 'each element of the cause of action entitling the party to judgment on that cause of action.' " (<i>Paramount Petroleum Corp. v. Superior Court</i> (2014) 227 Cal.App.4th 226, 241.) Thus, if damages are an element of a cause of action, "a plaintiff cannot obtain judgment on [that] cause of action in an amount of damages to be determined later." (<i>Ibid.</i>) Section 437c was amended in 1990 to limit summary adjudication motions to a cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty, and "[t]he clear purpose of the amendment was to 'stop the practice of adjudication of facts or adjudication of issues that do not completely dispose of a cause of action for a defense.' " (<i>Id.</i> at p. 242.) "A determination of liability alone does not completely dispose of the cause of action." (<i>Ibid.</i>) Here, Plaintiff contends that Defendants violated sections 31110 and 31201 of the CFIL. Section 31300(a) provides for a private right of action against any person who violates section 31110. Specifically, it provides, in relevant part, that any person
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		who violates section 31110 "shall be liable to the franchisee or subfranchisor, who may sue for damages caused thereby. . . ." Similarly, section 31301, which gives rise to a private right of action for violations of section 31201, provides that any person who violates section 31201 "shall be liable to any person (not knowing or having cause to believe that such statement was false or misleading) who, while relying upon such statement shall have purchased a franchise, for damages. . . ." Sections 31300 and 31301 establish that damages are an element of Plaintiff's causes of action for violations of sections 31110 and 31201. However, Plaintiff has not submitted any evidence of its damages in support of its motion. Thus, Plaintiff has not met its burden to show it is entitled to summary adjudication of the first, second, or third causes of action. Plaintiff argues that its motion turns on whether the statutory violations have been established and not whether all issues relating to remedy have been resolved. This ignores the fact that summary adjudication cannot be granted unless it completely disposes of a cause of action. To prevail on its causes of action under sections 31300 and 31301, Plaintiff must not only establish that Defendants violated the alleged provisions, but also that Plaintiff suffered damages as a result of those violations. Plaintiff also cites to <i>Andalon v. Superior Court</i> (1984) 162 Cal.App.3d 600 to argue that summary adjudication is proper on individual elements within a cause of action. Andalon was decided before section 437c was amended in 1990 to limit summary adjudication and is therefore inapplicable here. In light of the above, the motion for summary adjudication is DENIED. <i>Plaintiff to give notice.</i>
113	Eizad vs. Izad, 25-01476014	Defendant Hassan Izad ("Defendant") demurs to the entire Complaint, including the: (1) first cause of action for breach of contract, (2) second cause of action for breach of fiduciary duty, (3) third cause of action for negligence, (4) fourth cause of action for fraud, and (5) fifth cause of action for unjust enrichment. (ROA 2.)

		Plaintiff Sam Eizad ("Plaintiff") opposes the demurrer. The Court finds that the allegations in the Complaint are generally uncertain. It is unclear whether Plaintiff's action is brought pursuant to the terms of the trust or a separate agreement. Plaintiff alleges that "[o]n January 1, 2024, Defendant promised Plaintiff that Defendant was going to use the property of the Eizad Trust – amounting to \$1,000,000 ('the Eizad Trust Property') -- to invest for the personal benefit of Plaintiff." However, it is unclear whether this was a written or oral promise or an express or implied promise and, as mentioned earlier, it is unclear whether this promise was in addition to the trust or part of the trust discussed in the Complaint. Moreover, the Court finds that Plaintiff has not sufficiently stated the terms of the promise. Based on these uncertainties, the duties Defendant allegedly owed Plaintiff are uncertain as well. Additionally, the Court finds that Plaintiff's fraud cause of action lacks the requisite specificity. Fraud causes of action must be pled with specificity. "...This particularity requirement necessitates pleading facts which 'show how, when, where, to whom and by what means the representations were tendered.'" (<i>Stansfield v. Starkey</i> (1990) 220 Cal.App.3d 59, 73.) "This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the false representations were made." (<i>State ex rel. Edelweiss Fund, LLC v. JPMorgan Chase & Co.</i> (2023) 90 Cal.App.5th 1119, 1136–1137, as modified on denial of reh'g (May 30, 2023), review denied (Aug. 9, 2023) [internal citations omitted].) "The complaint must plead the time, place, and contents of the false representations, as well as the identity of the person making the misrepresentation and what he obtained thereby." (<i>Ibid.</i>)
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		Given the above, the demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. <i>Defendant to give notice.</i>
200	Slayton vs. City of Santa Ana, 21-01204216	<i>Parties should contact the clerk of the court.</i>